

24NNCV06778 24NNCV06778

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-18
Motion: MOTION TO TAX COSTS
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Case Number: 24NNCV06778 Hearing Date: August 18, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

EMIN TER
SAAKYAN,

Plaintiff(s),

vs.

GENERAL
MOTORS LLC, et al.,

Defendant(s).

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CASE NO.: 24NNCV06778

[TENTATIVE]

ORDER RE: MOTION TO TAX COSTS

Dept.

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8:30

a.m.

August 18,

2026

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On July 20, 2026, defendant General

Motors LLC ("Defendant") filed this motion to tax costs claimed by plaintiff Emin

Ter Saakyan ("Plaintiff") after accepting a settlement offer made pursuant to

Code of Civil Procedure section 998 ("998 Offer"). Defendant argues that

Plaintiff's memorandum of costs should be reduced by \$3,769.54. (Motion, p. 3.)

Defendant argues that Plaintiff's

claimed costs are not compensable because they were unreasonable and

unnecessary. The Song-Beverly Act requires allowing costs "determined by the

court to have been reasonably incurred by the buyer in connection with the

commencement and prosecution" of the case, which is reviewed under the abuse of

discretion standard. (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 813; see also generally Duff v. Jaguar Land Rover N. Am., LLC (2022) 74 Cal.App.5th 491, 501 [summarizing Civ. C. § 1794(d)].) “If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. [Citations.] Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs. [Citation.]” (Rappenecker v. Sea-Land Service, Inc. (1979) 93 Cal. App. 3d 256, 266.

The costs challenged by Defendant include:

(1) \$220.71 in filing & motion fees, (2) \$150 in jury fees, (3) \$2,720.90 in witness fees for expert David Gurul, (4) \$196.18 for service of process, (5) \$29.25 in fees for electronic filing or service, and (6) 452.20 in “other” costs described as “AppearMe service fee, mediation fee.”

In opposition, Plaintiff argues that jury fees were properly incurred in anticipation of trial and failure to pay jury fees before the initial case management conference would result in a waiver of a jury trial. (Code Civ. Proc., § 631(c).) Therefore, Plaintiff could not have waited to see if the matter would go to trial before paying them. The Court agrees and denies the request to tax this amount from Plaintiff's cost memorandum.

Second, Defendant complains that there is no indication of who Maddie Bright and Lisa Hernandez are and why they needed to be served with process. In opposition, Plaintiff sufficiently explains that these two individuals were served as agents of service of process for each of the two corporate defendants in this matter: Defendant and Camino Real Chevrolet. (Margarian Decl., Ex. A.) Nevertheless, Defendant should not have to pay for the cost to serve a different defendant. Accordingly, the charge to serve Camino Real Chevrolet is taxed in the amount of \$134.23.

Third, retaining appearance counsel for two occasions at a cost of \$95 each is common and reasonable. The mediation expense of \$262.50 is also reasonable in the prosecution of this case because it represents Plaintiff's 1/3 share of a mediation that involved three matter. The mediation occurred while the action was pending and was reasonably undertaken to facilitate resolution of the parties' dispute. The Court therefore denies the request to tax these expenses.

Fourth, Plaintiff's counsel cannot recover costs that have not been incurred, therefore the \$22.70 in anticipated filing fees for Plaintiff's pending fee motion is taxed from the memorandum of costs. (Civ. Code, § 1794(d) [awarding costs "reasonably incurred"]).

Fifth, the Court denies the motion to tax expert fees paid to David Gurul in the amount of \$2,797.90. Plaintiff's counsel states that Mr. Gurul was retained to inspect the Vehicle and evaluate the defects underlying Plaintiff's claims, which "assisted counsel in evaluating the Vehicle's condition, the reported defects, the repair history, liability, damages, civil-penalty exposure, and settlement value." (Margarian Decl., ¶ 15.) The fact that Plaintiff did not designate a trial expert is irrelevant because the matter settled before it went to trial.

Finally, Plaintiff does not explain why the \$29.25 sought for electronic filings or service was reasonably incurred or necessary to this action. Plaintiff's counsel does not identify which filings are associated with the claimed costs and there is no invoice attached showing that those costs were incurred.

Based on the foregoing, Plaintiff's claimed costs of \$4,302.94 are reduced by \$186.18 for a total award of \$4,116.76 in costs.

Dated
this 18th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a

submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.